

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, August 27, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-01782	Lillian Oliver vs Auto Resources Inc., et al.
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Order to Show Cause Re: Dismissal – Notice of Settlement

Appearance required. Appear to address status of settlement and whether this matter may be dismissed.

25CV-01889	Kelly Bretzinger, et al. vs Niren Angle, Doctor of Medicine, et al.
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Demurrer

The hearing on the demurrer is continued to September 24, 2026, at 8:15 a.m. in Courtroom 8.

“Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

“The demurring party shall file and serve with the demurrer a declaration stating either of the following: (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 430.41, subd. (a)(3).)

However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).)

Here, Defendant has not satisfied the meet and confer requirements of section 430.41. Defendant’s counsel states in her declaration in support of Defendant’s reply brief that counsel was not able to meaningfully meet and confer with Plaintiff’s counsel. The demurrer is continued to allow the parties to meet and confer.

Accordingly, the parties are ordered to engage in meet and confer efforts over their dispute in person, by phone, or by video conference, as required by Code of Civil Procedure section 430.41, subdivision (a).

If the parties are able to resolve their dispute, then Defendant shall promptly take the demurrer off calendar. If the parties are not able to resolve their dispute, then Defendant’s counsel shall file a declaration regarding the meet and confer efforts by September 14, 2026.

25CV-06395 Tomas Gonzalez Jimenez, et al. vs Maria Vasquez Legorreta

Petition for Minor’s Compromise

The petition for approval of the minor’s compromise is GRANTED.

The court will sign the orders lodged with the court on August 14, 2026.

A status conference is set for November 18, 2026, at 8:15 a.m. in Courtroom 8, for confirmation of deposit of the minor’s funds into the blocked account.

If Petitioner files the Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account (MC-356) at least five (5) court days before the hearing, the status conference will come off calendar.

26CV-00547 Joe Scoto vs. Philip Snowberger

Motion for Attorneys’ Fees

The motion for attorneys’ fees is DENIED WITHOUT PREJUDICE.